

Basic Conditions of Employment Act 75 of 1997

BASIC CONDITIONS OF EMPLOYMENT ACT 75 OF 1997

Application

Applies to all employees and employers except members of the National Defence Force, National Intelligence Agency, South African Secret Service and unpaid volunteers working for charitable organisations (with further limited exclusions).

Working time (Chapter 2)

- Maximum ordinary hours: 45 hours in any week.
- Overtime only by agreement, limited and paid at 1.5 times the ordinary wage (or time off by agreement).
- Meal intervals of at least one continuous hour after five hours' work (may be reduced by written agreement to 30 minutes).

Leave (Chapter 3)

- Annual leave: at least 21 consecutive days on full remuneration in respect of each annual leave cycle, or one day for every 17 days worked.
- Sick leave: in a 36-month cycle, paid sick leave equal to the number of days the employee would normally work during six weeks.
- Maternity leave: at least four consecutive months' maternity leave.
- Family responsibility leave: three days paid leave per annual leave cycle when the employee's child is born or sick, or in the event of death of a close family member.

Termination (Chapter 5)

Notice periods scale with length of service (one week / two weeks / four weeks). Employers must provide a certificate of service.

Sectoral determinations and ministerial determinations may vary conditions for specific sectors.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —